

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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MAMADOU T. BARRY,

Plaintiff,

-against-

Plaintiff designates Bronx County
as the place of trial

Basis of venue is
county of occurrence

THE CITY OF NEW YORK,
JUAN MARTINEZCABRERA,
LAMIK FITZGERALD and
CHRISTOPHER CRANE,

SUMMONS

Defendants.

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To the above-named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within 20 days after service of this summons (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
June 10, 2024

SIVIN, MILLER & ROCHE, LLP

By Edward Sivin

Edward Sivin
Attorneys for Plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

The City of New York: c/o NYC Corp. Counsel, 100 Church St., New York, NY 10006

P.O. Juan Martinezcabrera: c/o NYPD 40th Precinct, 257 Alexander Ave, Bronx, NY 10454

P.O. Lamik Fitzgerald: c/o Gun Violence Suppression Div., Zone 02, c/o 1 Police Plaza, NYC

Lt. Christopher Crain, c/o NYPD 49th Precinct, 2121 Eastchester Rd, Bronx, NY 10461

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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MAMADOU T. BARRY,

Plaintiff,

-against-

THE CITY OF NEW YORK,
JUAN MARTINEZCABRERA,
LAMIK FITZGERALD and
CHRISTOPHER CRANE,

VERIFIED COMPLAINT

Defendants.

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Plaintiff, by his attorneys SIVIN, MILLER & ROCHE, LLP, as and for his
complaint herein, alleges as follows, upon information and belief:

THE PARTIES

1. That at all times herein mentioned, Plaintiff was and is a resident of the County
of Bronx, City and State of New York.

2. That at all times herein mentioned, Defendant The City of New York
(hereinafter “the City”) was and is a municipal corporation, duly organized and existing under
and by virtue of the laws of the State of New York.

3. That at all times herein mentioned, the City operated, controlled, managed, and
maintained the New York Police Department (hereinafter the “NYPD”).

4. That at all times herein mentioned, Defendant Juan Martinezcabrera
(Martinezcabrera) was and is a police officer employed by the NYPD.

5. That at all times herein mentioned, Martinezcabrera was acting within the
course and scope of his employment with the NYPD.

6. That at all times herein mentioned, Martinezcabrera was acting under color of state law.

7. That at all times herein mentioned, Defendant Lamik Fitzgerald (Fitzgerald) was and is a police officer employed by the NYPD.

8. That at all times herein mentioned, Fitzgerald was acting within the course and scope of his employment with the NYPD.

9. That at all times herein mentioned, Fitzgerald was acting under color of state law.

10. That at all times herein mentioned, Defendant Christopher Crain (Crain) was and is a police lieutenant employed by the NYPD.

11. That at all times herein mentioned, Crain was acting within the course and scope of his employment with the NYPD.

12. That at all times herein mentioned, Crain was acting under color of state law.

13. That prior to the institution of this action, and within ninety days of the accrual of the causes of action herein, a notice of claim and intention to sue was duly served upon and filed with Defendants; that this action was not commenced until the expiration of thirty (30) days after such notice of claim and intention to sue was presented and Defendants have neglected and/or refused to make adjustment or payment thereon; and this action is being commenced within one year and ninety days after the causes of action accrued herein.

THE FACTS

14. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

15. That on or about March 17, 2023, at or around 9:30 p.m., Plaintiff was a

lawful pedestrian outside the building and premises of 593 East 141st Street, in the County of Bronx, City and State of New York.

16. That while Plaintiff was a lawful pedestrian at the aforementioned location, he was forcibly stopped, seized, and searched by NYPD officers, including but not limited to the named defendants herein (hereinafter referred to collectively as “the officers”), without a warrant and without probable cause or reasonable suspicion to believe that Plaintiff had committed or was about to commit any crime or criminal violation.

17. That after their search of Plaintiff demonstrated that Plaintiff was not in possession of any contraband or evidence of a crime, the officers let Plaintiff go.

18. That after he was let go by the officers, Plaintiff began videotaping the officers with his cell phone, while simultaneously asking the officers to identify themselves.

19. That in response to Plaintiff’s videotaping and inquiry, Martinezcabrera punched Plaintiff in the head.

20. That after Martinezcabrera punched Plaintiff in the head, the officers assaulted and battered Plaintiff, including but not limited to forcibly taking Plaintiff to the ground, punching and kicking Plaintiff, and handcuffing Plaintiff.

21. That following their illegal stop, seizure, search, and assault and battery of Plaintiff, the officers arrested and imprisoned Plaintiff, without a warrant and without probable cause to believe that Plaintiff had committed or was about to commit a crime or criminal violation.

22. That on or about March 17, 2023, the officers also initiated and/or caused to be initiated a criminal prosecution of Plaintiff, in which Plaintiff was charged with crimes, including criminal mischief and resisting arrest, of which he was innocent and of which the

officers knew Plaintiff to be innocent.

23. That the aforesaid prosecution was initiated without probable cause, and with malice.

24. That in support of the prosecution, Martinezcabrera signed a Criminal Court Complaint in which he made accusations and statements against Plaintiff that were false, and that he knew were false.

25. That in support of the aforesaid prosecution, Martinezcabrera, Fitzgerald, and Crane knowingly made false statements and representations to fellow officers and to prosecutors regarding the circumstances of Plaintiff's arrest, including but not limited to statements that Plaintiff kicked the door of a police vehicle and engaged in actions to physically resist the officers' attempt to arrest him.

26. That the aforesaid statements by Martinezcabrera, Fitzgerald, and Crane were material to a determination whether there was probable cause to stop, seize, search, arrest, and prosecute Plaintiff, and were designed and likely to influence others as to Plaintiff's guilt in connection with the criminal charges brought against him.

27. That as a result of the aforesaid prosecution, and false statements, Plaintiff endured a significant deprivation of his liberty, including but not limited to his ability to travel, and was required to make several appearances in Criminal Court to defend against the charges that were brought against him.

28. That on or about July 7, 2023, all charges against Plaintiff were dismissed and the criminal proceeding terminated favorably to Plaintiff.

29. That each of the officers acted jointly and in concert with one another.

30. That each of the officers observed the illegal and unconstitutional conduct in

which their fellow officers engaged, each had reasonable opportunities to intervene to prevent and/or stop that conduct, and each deliberately and intentionally failed and refused to do so.

31. That the actions of the officers were intentional and malicious in nature.

32. That as a result of the actions of the officers, Plaintiff suffered significant emotional and physical injuries, endured and will continue to endure pain and suffering and loss of enjoyment of life, incurred medical and other expenses and other economic loss, was deprived of his liberty, and has been otherwise damaged.

33. That prior to the events alleged herein, each of the named Defendants had engaged in similar acts involving abuse of their authority, had engaged in numerous illegal and unconstitutional actions towards others, and had been the subject of numerous complaints and lawsuits arising out of their abuse of authority, including several lawsuits that resulted in monetary payments to the plaintiffs therein.

34. That as a result of the extensive history of abuse of authority by Defendants herein, the City was on actual notice that these Defendants were unfit to continue to be employed by the NYPD.

35. That despite the City's actual knowledge of these Defendants' unfitness for employment, the City knowingly retained these Defendants as employees and failed to take sufficient remedial measures to monitor, supervise, train and/or discipline these Defendants.

36. That as a result of the City's retention of these Defendants, without taking sufficient remedial measures, the City caused and/or allowed these Defendants to continue to abuse their authority, and to cause the injuries alleged by Plaintiff herein.

FIRST CAUSE OF ACTION AGAINST ALL DEFENDANTS
(Assault and Battery Under NY State Law)

37. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

38. That the aforementioned actions of the officers constituted an assault and battery upon Plaintiff, for which the officers are liable under NY State law and for which the City is vicariously liable under the doctrine of respondeat superior.

SECOND CAUSE OF ACTION AGAINST ALL DEFENDANTS
(False Arrest/Imprisonment Under NY State Law)

39. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

40. That the aforementioned actions of the officers constituted a false arrest and a false imprisonment of Plaintiff, for which the officers are liable under NY State law and for which the City is vicariously liable under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION AGAINST ALL DEFENDANTS
(Malicious Prosecution Under NY State Law)

41. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

42. That the aforementioned actions of the officers constituted a malicious prosecution of Plaintiff, for which the officers are liable under NY State law and for which the City is vicariously liable under the doctrine of respondeat superior.

FOURTH CAUSE OF ACTION AGAINST THE OFFICERS
(42 USC § 1983 Claim Arising from Fourth & Fourteenth Amendment Violations)

43. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

44. That the aforementioned actions of the officers in stopping, seizing, searching, assaulting and battering, falsely arresting and imprisoning, and maliciously prosecuting Plaintiff constituted illegal searches and seizures of Plaintiff, in violation of rights guaranteed to Plaintiff under the Fourth and Fourteenth Amendments to the U.S. Constitution, and entitle Plaintiff to recover damages pursuant to 42 U.S.C. § 1983.

FIFTH CAUSE OF ACTION AGAINST THE OFFICERS
(42 USC § 1983 Claim Based on Denial of Right to Fair Trial)

45. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

46. That the aforesaid actions of the officers constituted a denial of Plaintiff's right to a fair trial, in violation of Plaintiff's rights under the Fifth, Sixth, and Fourteenth Amendments to the United States Constitution, and entitle Plaintiff to recover monetary damages under 42 U.S.C. § 1983.

SIXTH CAUSE OF ACTION AGAINST ALL DEFENDANTS
(NYC Administrative Code § 8-802)

47. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

48. That the aforesaid actions by Defendants constituted unreasonable searches and seizures and uses of excessive force in violation of Plaintiff's rights pursuant to NYC

Administrative Code § 8-802, and entitle Plaintiff to recover monetary damages under NYC Administrative Code § 8-803.

SEVENTH CAUSE OF ACTION AGAINST THE OFFICERS
(42 USC § 1983 Claim Arising from Failure to Intervene)

49. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

50. That the aforementioned actions of the officers in failing to intervene to prevent and/or stop the illegal conduct of their fellow officers constituted a violation of rights guaranteed to plaintiff under the Fourth, Fifth, Sixth, and Fourteenth Amendments to the U.S. Constitution, and the NYC Administrative Code § 8-802, and entitle plaintiff to recover damages pursuant to 42 U.S.C. § 1983 and pursuant to NYC Administrative Code § 8-803.

EIGHTH CAUSE OF ACTION AGAINST THE CITY
(Negligent Hiring, Training, Supervision, and Retention)

51. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

52. That the aforesaid incident and resulting damage to plaintiff were due to the negligence of the City, its agents, servants and/or employees, in the hiring, training, supervision, and retention of the officers.

53. That all of the causes of action herein fall within one or more of the exceptions set forth in CPLR Article 16 with respect to joint and several liability.

WHEREFORE, Plaintiff demands judgment against Defendants, and each of them, on the foregoing causes of action for compensatory damages and punitive damages in an amount that exceeds the jurisdictional limitations of all lower courts that otherwise would have

jurisdiction over this matter, and attorney's fees against Defendants pursuant to 42 U.S.C. § 1988 and NYC Administrative Code § 8-805, and Plaintiff also demands the costs and disbursements of this action.

Dated: New York, New York
June 10, 2024

Yours, etc.
SIVIN, MILLER & ROCHE, LLP

By Edward Sivin
Edward Sivin
Attorneys for Plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

VERIFICATION

EDWARD SIVIN, an attorney duly admitted to practice law in the State of New York, hereby affirms the following, under penalty of perjury:

That I am the attorney for the Plaintiff(s) in the within action.

That I have read the foregoing complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be upon information and belief; and as to those matters I believe it to be true.

That the reason this verification is made by your affirmant and not by the plaintiff(s) is that plaintiff(s) does not reside in the County where your affirmant maintains his office.

That the grounds for your affirmant's belief as to all matters not stated upon my knowledge are as follows: records, reports, facts and documents contained in Plaintiff(s) file maintained by your affirmant's office.

Dated: New York, New York
June 10, 2024

Edward Sivin

EDWARD SIVIN